

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

/ /

Chief:

/ /

To be completed by City/County Clerk

License

Fees

Annual Fee:

\$ 1500.00

Prorated Fee:

\$

Transfer Fee:

\$

Publishing Fee:

\$ 100.00

Publishing Fee Direct Billed to Applicant: ☐

Local License #:

WRL 39812

Date filed with clerk:

1 / 25 / 22

Advertising Dates: (2 Weeks)

3/31/22 & 4/7/22

Hearing Date:

4 / 11 / 22

License Term:

Month

Day

Year

Through

Month

Day

Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant:

Big D Oil Co.

Trade/Business Name (dba):

Big D Oil #56

Building to be licensed/Building Address:

4100 Whitney Rd

Number & Street

Cheyenne

WY

82001 Laramie

Local Mailing Address:

4100 Whitney Rd

City

State

Zip

County

Cheyenne

Number & Street or P.O. Box

WY

82001

City

State

Zip

Local Business Telephone Number: (307) 286-4032

Fax Number: (307) 514-0898

Business E-Mail Address: bigdcheyenne1@gmail.com

FILING FOR☐ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OWNERSHIP

FORMERLY HELD BY:

FILING IN (CHOOSE ONLY ONE)☒ CITY OF: Cheyenne☐ COUNTY OF:☐ ASSIGNMENT LETTER ATTACHED**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP/LLP☐ LLC☒ CORPORATION☐ LTD PARTNERSHIP☐ ORGANIZATION☐ OTHER**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)****RETAIL LIQUOR LICENSE**☐ ON-PREMISE ONLY (BAR)☒ OFF-PREMISE ONLY (PACKAGE STORE)☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)
☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ BAR AND GRILL
LIMITED RETAIL (CLUB)
☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB

☐ MICROBREWERY
☐ WINERY
☐ DISTILLERY SATELLITE
☐ WINERY SATELLITE
☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT
SPECIAL DESIGNATIONS☐ CONVENTION FACILITY☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM☐ GOLF CLUB☐ GUEST RANCH☐ RESORTTo Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**☒ FULL TIME (e.g. Jan through Dec)

(specify months of operation)

from Jan to Dec

☐ SEASONAL/PART-TIME

DAYS OF WEEK (e.g. Mon through Sat)

from SUN to Sat

☐ NON-OPERATIONAL/PARKED

HOURS OF OPERATION (e.g. 10a - 2a)

from 6:00 AM to 10:00 PM

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☒ YES (own) ☐ YES (lease)
- (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☐ YES (lease)
- If Yes, please submit a copy of the lease and indicate:
- (i) When the lease expires, located on page _____ paragraph _____ of lease.
- (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.
(**MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES.**)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)☐ YES ☒ NO**3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403**

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO**6. RESORT LICENSE:**

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL☐ MICROBREWERY

000

9. LIMITED RETAIL (CLUB) LICENSE:**FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
		NA		YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Donald A. Policky	3/3/67	8280 Highland Loop Rapid City, SD 57702	605-341-4114	29	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-801(b).

OATH OR VERIFICATION

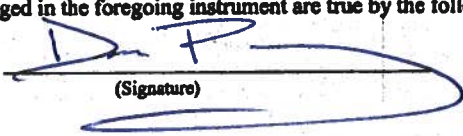
(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF SD WYOMINGCOUNTY OF Pennington

) SS.

Signed and sworn to before me on this 19 day of January, 2022 that the facts alleged in the foregoing instrument are true by the following:

- | | | | |
|----|---|--------------------|------------------|
| 1) |  | <u>Don Policky</u> | <u>President</u> |
| | (Signature) | (Printed Name) | Title |
| 2) | _____ | _____ | _____ |
| | (Signature) | (Printed Name) | Title |
| 3) | _____ | _____ | _____ |
| | (Signature) | (Printed Name) | Title |
| 4) | _____ | _____ | _____ |
| | (Signature) | (Printed Name) | Title |
| 5) | _____ | _____ | _____ |
| | (Signature) | (Printed Name) | Title |
| 6) | _____ | _____ | _____ |
| | (Signature) | (Printed Name) | Title |

Witness my hand and official seal:


Signature of Notary Public

Dear Mayor and City Council,

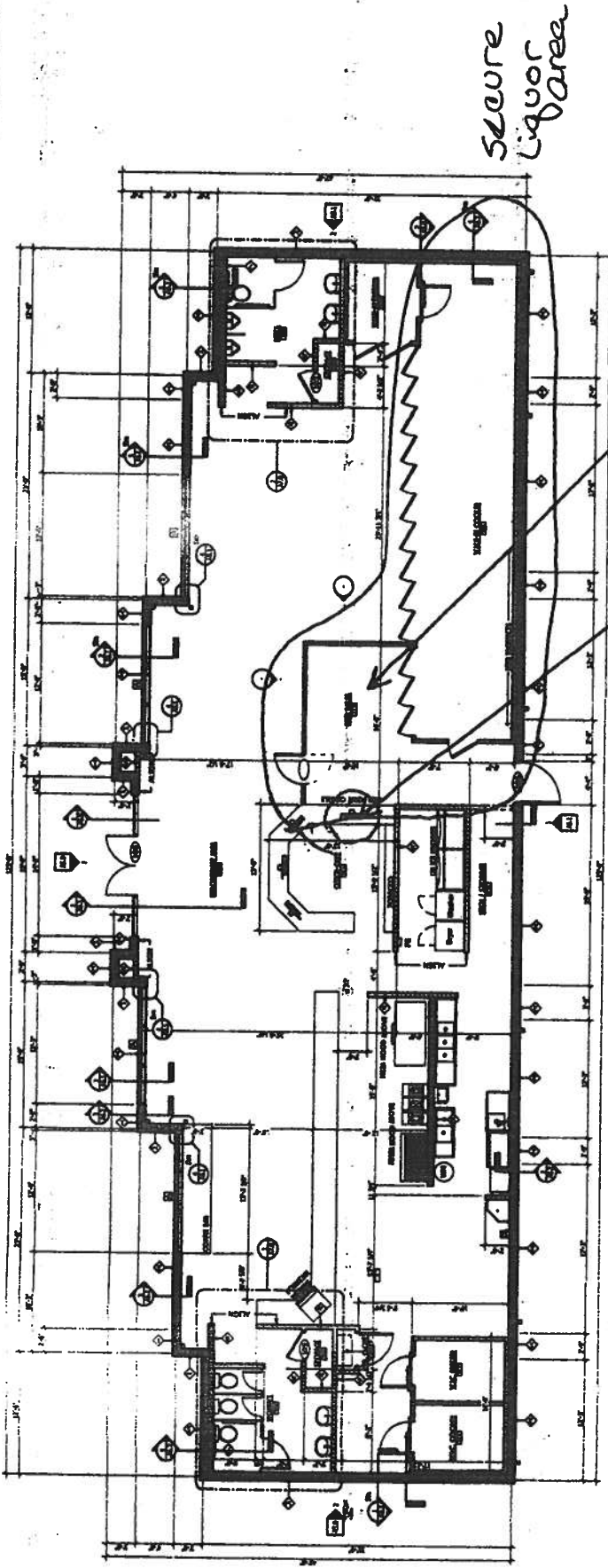
Big D Oil believes in growing with the community and offer service the community has requested.

We wish to be considered for a liquor license for our new location at 4100 Whitney Rd, Cheyenne WY 82001. There we will sell retail package liquor only. Our cashiers will be tips trained and our passport registers will require ID scan for age verification.

We appreciate your consideration in this matter.

Thank You,

Big D Oil Co.



Sauve
Liquor
Daree

Cash register	secure Liquor area
---------------	-----------------------

FLOOR PLAN KEYNOTES

FLOOR PLAN GENERAL NOTES:

- A. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- B. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- C. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- D. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- E. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- F. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- G. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- H. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- I. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.
- J. ALL CRIMINALS MUST BE HELD IN THE COUNTY JAIL FOR 30 DAYS UNLESS PROVEN TO BE A CRIMINAL OF NEAR CERTAINTY.

QUEST

- [illegible]

QUEST LEGEND

- [illegible]

4. **WOMEN'S TOWN HISTORY GROUPS / ANNUALS**

- [illegible]

THE FINEST ALUMINUM STOREROCK

- THE FINEST ALUMINUM STOREROCK

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

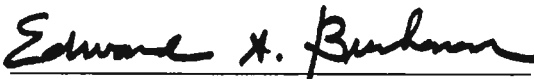
Big D Oil Co.
is a
Profit Corporation

formed or qualified under the laws of South Dakota did on **September 4, 1963**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **1980-000092583**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed an Application for Certificate of Withdrawal.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 7th day of January, 2022 at 6:42 AM. This certificate is assigned ID Number 049080126.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.

STATE OF WYOMING * SECRETARY OF STATE
EDWARD A. BUCHANAN
BUSINESS DIVISION

Herschler Bldg East, Ste.100 & 101, Cheyenne, WY 82002-0020

Phone 307-777-7311

Website: <https://sos.wyo.gov> · Email: business@wyo.gov

Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name	Big D Oil Co.		
Filing ID	1980-000092583		
Type	Profit Corporation	Status	Active

General Information

Old Name		Sub Status	Current
Fictitious Name		Standing - Tax	Good
		Standing - RA	Good
Sub Type		Standing - Other	Good
Formed in	South Dakota	Filing Date	09/04/1963 12:00 AM
Term of Duration	Perpetual	Delayed Effective Date	
		Inactive Date	

Share Information

Common Shares	250,000	Preferred Shares		Additional Stock	Y
Par Value	1.0000	Par Value	0.0000		

Principal Address

3685 Sturgis Rd
Rapid City, SD 57702

Mailing Address

PO Box 1378
Rapid City, SD 57709

Registered Agent Address

Clyde W Mead
2234 W Lincolnway
Cheyenne, WY 82001

Parties

Type	Name / Organization / Address
------	-------------------------------

Notes

Date	Recorded By	Note
------	-------------	------

To Whom It May Concern

Big D Oil will be in compliance at all times regarding the sale of liquor. The cashiers and manager will be Tips trained before being allowed to ring up any alcohol sales. We will have the standard signage stating no one under 21 will be sold alcohol and the customer must have a valid ID to scan.

Clyde Mead

Business Plan for Big D Oil Store #56

Big D Oil is an established Corporation with several stores in operation. Big D employs 60+ employees in Cheyenne. At the location of 4100 Whitney Road we are there to meet the needs of the community by providing:

- * Convenient location for a growing area to serve the community.

- * The liquor store along with our other offerings such as, fueling services, restrooms, hot food, sporting goods, groceries and general merchandise will generate tax income for the City of Cheyenne.

- * Cashiers for liquor store are to be Tips trained to deliver responsible liquor sales.

- * Big D operates several liquor stores in the state of Wyoming successfully and responsibly.

- * We offer competitive pricing that customers appreciate and creates return business which creates higher revenue.

- * We offer fair and competitive wages for employment opportunities as we will be staffing this store with an additional 10-15 employees.

- * Pay for cashiers ranges \$11 to \$13 an hour.

- * Assistant Managers average is \$15 an hour.
 - * Managers range averages between \$50,000 to \$60,000 at this time.
 - *Hours of operation of the store will be 6am to 10pm.
- We look forward to serving the community we live and work in.

Financial Plan

Our newly built store on the corner of Highway 30 and Whitney Rd will be completed in March and is solely owned by Big D Oil. Big D has invested millions of dollars in the building at this location. Big D has been in business over 50 years and have met all financial obligations for this project. We have designed the store in such a manner that the liquor store would meet all requirements.

Thank you for your consideration.

Big D Oil

